



PLANNING &
DEVELOPMENT
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Cheyenne, WY 82001
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cheyennecity.org

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-26-174 / Orchard Hills – Annexation
Date: September 14, 2026

Background:

The item for consideration is an Annexation. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- | | |
|-----------------------------|--------------------|
| • Introduction and Referral | September 14, 2026 |
| • Public Services Committee | September 21, 2026 |
| • Second reading | September 28, 2026 |
| • Public Services Committee | October 5, 2026 |
| • Third and final reading | October 12, 2026 |

Public Comment

As of the creation of this memo (September 9, 2026), Staff has received no new inquiries or comments from the public on this project. The project page on the website has received 202 views and no comments.

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND WEST OF SOUTH GREELEY HIGHWAY, SOUTH OF WEST COLLEGE DRIVE, AND SOUTHWEST OF AND ADJACENT TO THE INTERSECTION OF APPLE STREET AND YORK AVENUE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Orchard Hills, LLC is the owner of the below-described real property and has petitioned the Governing Body of the City of Cheyenne to annex the property described herein and to make it a part of the City:

A PARCEL OF LAND BEING THE SW1/4 OF SECTION 18, TOWNSHIP 13 NORTH RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN, LARAMIE COUNTY, WYOMING AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE WEST ONE-QUARTER CORNER OF SECTION 18; THENCE S89°53'10"E A DISTANCE OF 1377.66 FEET; THENCE S89°54'17"E A DISTANCE OF 1317.22 FEET; THENCE S00°14'44"W A DISTANCE OF 2626.16 FEET TO THE SOUTH ONE-QUARTER CORNER OF SAID SECTION 18; THENCE ALONG THE SOUTH LINE OF SAID SECTION 18 S89°59'18"W A DISTANCE OF 2687.83 FEET TO THE SOUTHWEST CORNER OF SAID SECTION 18; THENCE ALONG THE WEST LINE OF SAID SECTION 18 N00°05'31"E A DISTANCE OF 2631.62 FEET MORE OR LESS TO THE POINT OF BEGINNING;

Said parcel of land contains 162.42 acres, more or less.

- (b) That an accurate annexation map depicting the area to be annexed by this ordinance is attached to this ordinance as Exhibit A, said map prepared by Adam E. Deschler, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 12045;
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne;
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be

furnished;

- (f) That the area is adjacent to the City of Cheyenne and is currently zoned LU – Land Use by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Section 1 and depicted on Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance, together with the map identified as Exhibit A, with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

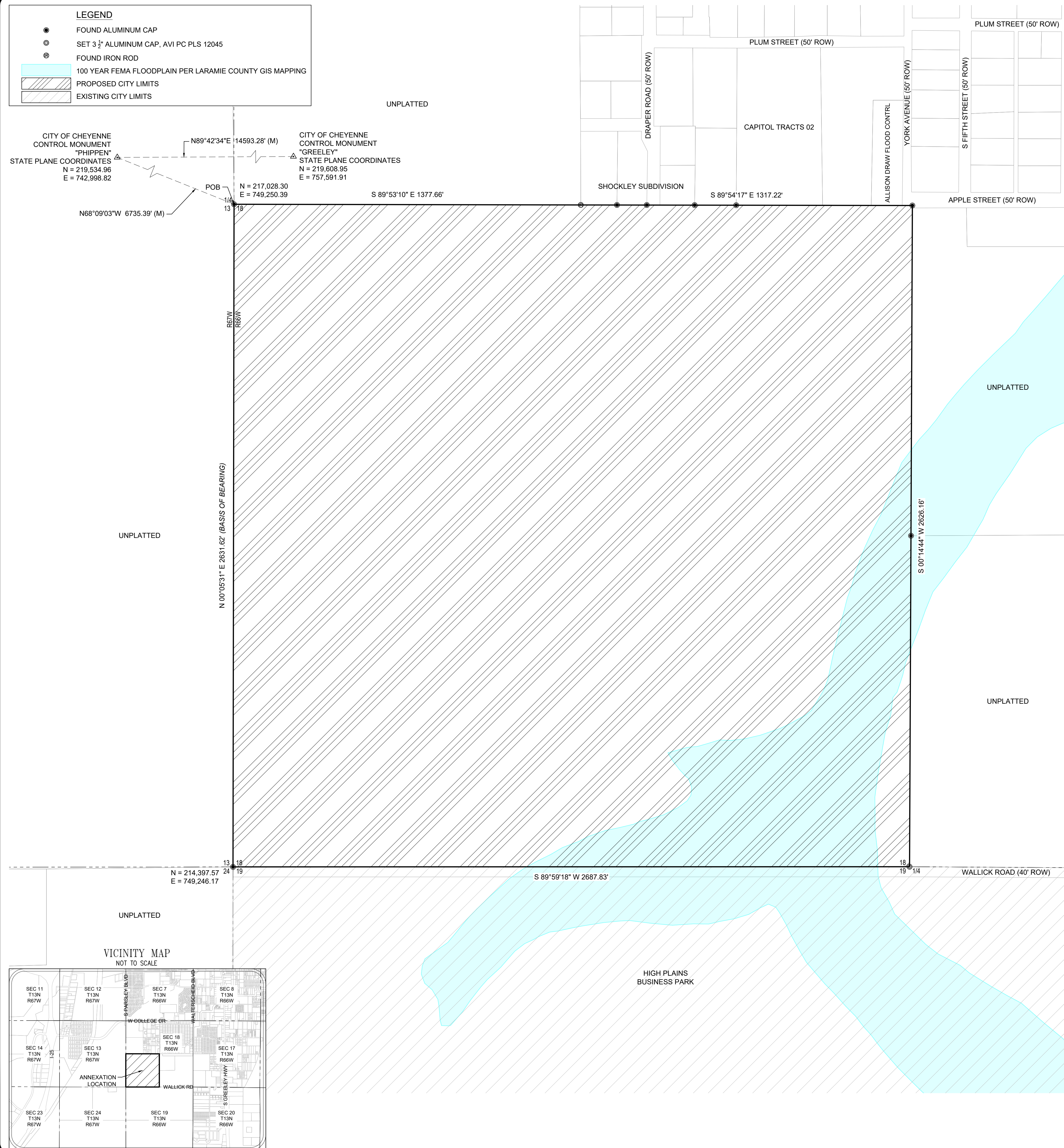
PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

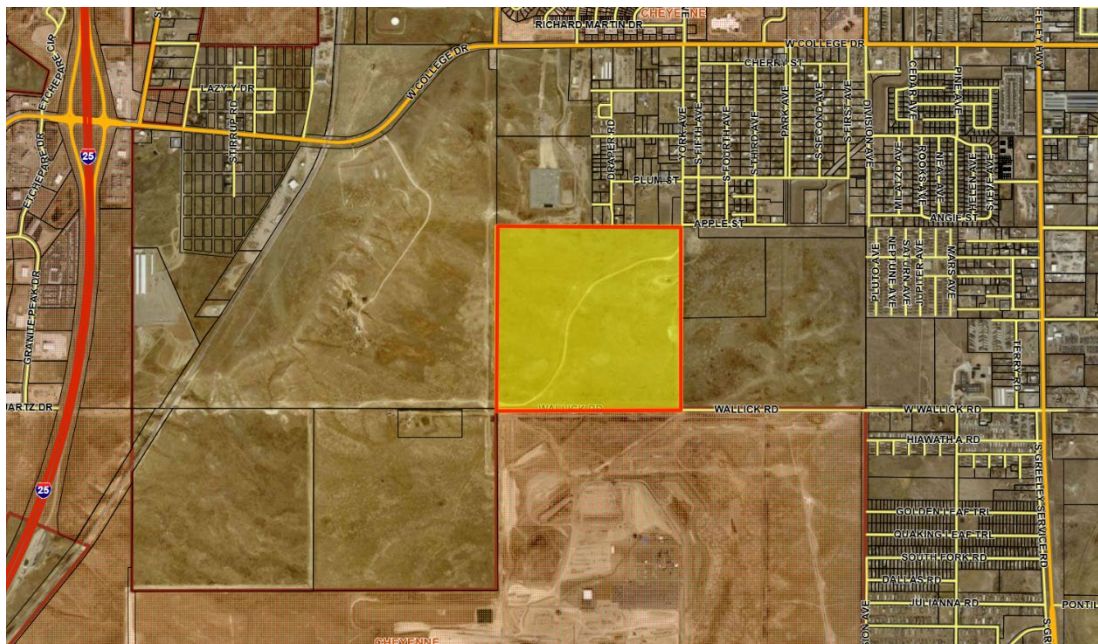
Published: _____
Wyoming Tribune-Eagle



DRAWING NO. _____ OF 1



FILE:	PUDC-26-174: Orchard Hills - Annexation
REQUEST:	An annexation of 162.42 acres of land.
LOCATION:	West of South Greeley Highway, south of West College Drive, and southwest of and adjacent to the intersection of Apple Street and York Avenue.
APPLICANT:	Orchard Hills LLC
AGENT:	Trey Rinne, AVI PC
OWNERS:	Orchard Hills LLC
PREPARED BY:	Connor White, Planner II



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexation of roughly 162.42 acres of land for industrial development. The land is currently vacant. The applicant has submitted a subsequent Future Land Use Map Amendment (PUDC-26-176) and a Zone Change request (PUDC-26-175).

Land annexed to the City requires a City zone. The petition to annex has been accompanied by an assigned City zone of AG - Agricultural.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Residential	County LU – Land Use	Grazing
North	Urban Residential	County LU Land Use, County URLD – Urban Residential Low-density	Single-family Residential, Utility Substation
South	Mixed-use Employment	LI – Light Industrial	Data Center
East	Mixed-use Residential	County LU	Vacant
West	Mixed-use Residential	County LU – Land Use	Vacant, rural residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

1) **An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]**

By being in City limits, the property will receive access to City Fire and Police and sanitation services as they are extended to the area as it develops. This will allow for coordinated police and fire response and a larger response, improving emergency service coverage for future development in the area. By being within City Limits the property will be able to connect to City services such as water and sewer. Access to City water and sewer instead of relying on private wells and septic systems, reduce long-term groundwater impacts that could also affect downgradient properties.

The application **complies** with this review criterion.

2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]

The land proposed for annexation is currently vacant. The land is surrounded by residential development to the north/northwest, vacant land to the east and west and industrial development to the south. The annexation of this property will benefit those who live within the City as it will provide more economic development opportunities as it develops over time and will become a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to industrial and commercial developments will also be made available. Police and fire protection are already in the area. The nearest fire station is Fire Station Two. The closest water main is along the west and south side of the property allowing for easy connection or extension of the water line into the parcel. The closest sewer line is along the east side of the property allowing for easy connection or extension of the sewer line into the parcel.

The application **complies** with this review criterion.

4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]

The land proposed for annexation is roughly 25.26% contiguous.

The application **complies** with this review criterion.

5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and

notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]

A certified mailing was made to the landowners and public utilities on August 13, 2026. Property owners within 300-feet of the area to be annexed were also mailed notice at this time. The public hearing for this annexation is scheduled for September 14, 2026. Twenty (20) business days (on the City's calendar) prior to the announced public hearing is August 14, 2026. The earliest confirmation of delivery was dated August 17, 2026.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with Mixed-use Residential uses. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits. The area is within the Urban Service Boundary.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways:

- **Legal Notice** in the Wyoming Tribune Eagle published on August 8, 2026 and September 5, 2026.
- **Mailed Notice** was sent out by Staff on August 13, 2026 to all property owners within the annexation and within 300 feet of the area to be annexed.
- **Posted Notice** Evidence of posted notice was provided that signs were posted on September 1, 2026.
- **Internet Posting** on connect.cheyennecity.org on July 13, 2026.

As of the publication of the Staff Report (September 9, 2026), Staff has received no inquiries from the public on this project. The project page on the website has received 202 views and no comments.

STAFF REVIEW:

No major comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

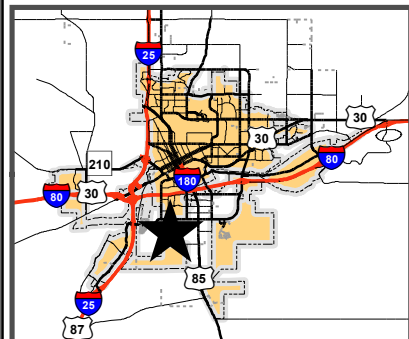
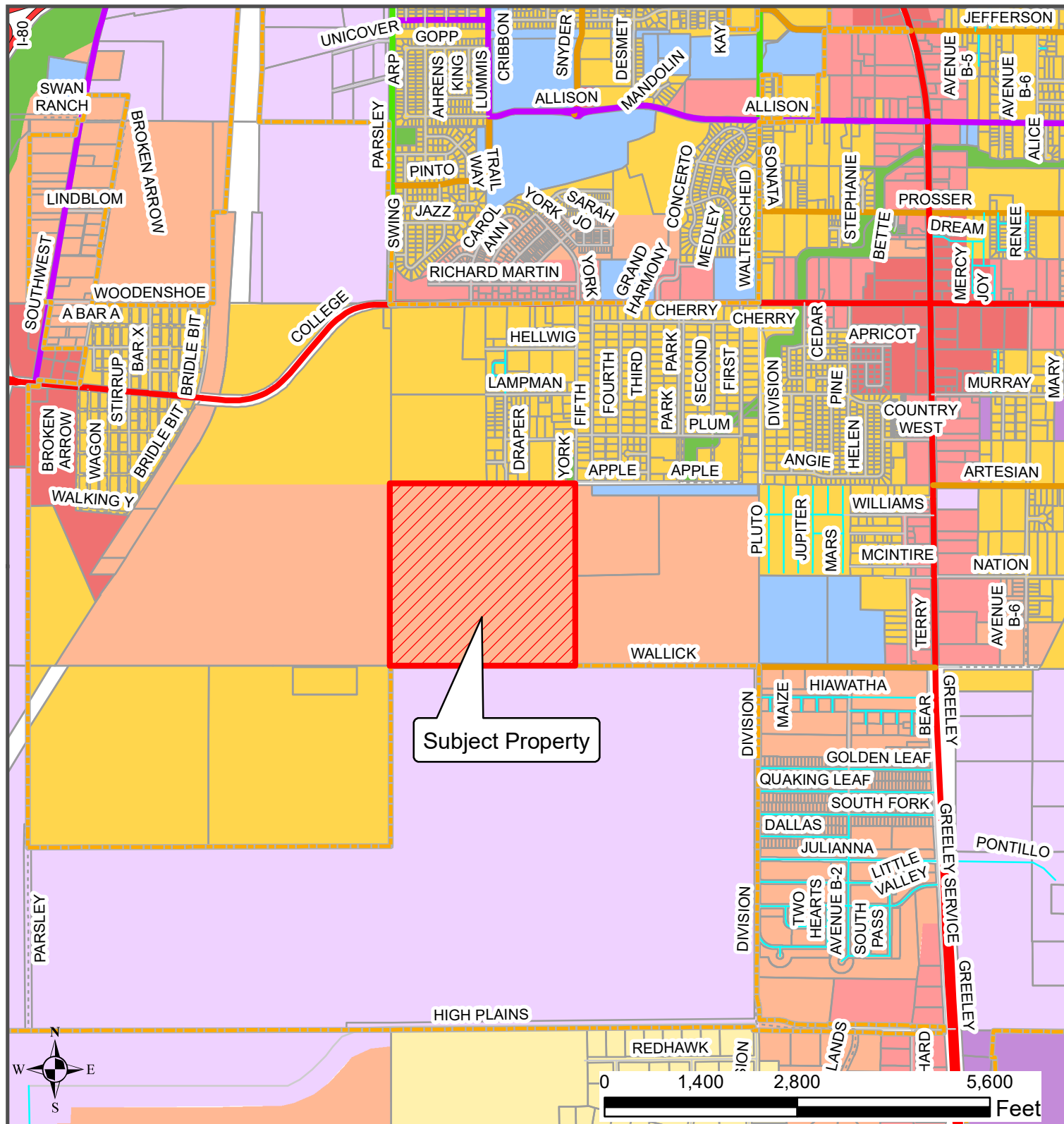
The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and services typically available to urban areas are available to be extended to this property.

STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Submitted Application
4. Applicant-submitted annexation map



Attachment 2: Land Use Map PUDC-26-174

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Platted not built		
Ownership		

Record No: PUDC-26-174

Annexation

Status: Active

Submitted On: 7/8/2026

PIDN #13661830000100

Primary Location

O DRAPER RD

Cheyenne, WY 82007

Owner

ORCHARD HILLS LLC

506 SHOSHONI ST CHEYENNE, WY 82009

Application Information

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Please Note: Annexation applications may **not be withdrawn** (Wyoming State Statute 15-1-403 b). If mylars are not provided in an attempt to 'withdraw' the application, the City will hire a surveyor to produce mylars and invoice the applicant for the work preformed.

The property owner is aware this application may not be withdrawn.*



I understand final stamped and signed mylars are required prior to final Governing Body approval.*



Project Name* 

Orchard Hills

Annexation Type*

Landowner Petition

Pursuant to UDC 2.4.2 and 2.2.8, the City zone assigned will be the standard City zone most closely matching the current County zone. If the assigned zone is not the desired zone, please also apply for a zoning map amendment. The anticipated assigned zoning based on the current County and City zoning requirements can be found on a policy document [here](#).

Annexation Review Criteria

The following review criteria are found in Wyoming State Statute regarding annexation. Please acknowledge the proposed annexation meets each review criterion by checking the box.

An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town (15-1-402 a i)*



The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town (15-1-402 a ii)*



The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed (15-1-402 a iii)*



The area sought to be annexed is contiguous with or adjacent to the annexing city or town (15-1-402 a iv)* 



Percent Contiguous*

25.26

No tract of land or any part thereof, whether consisting of one (1) parcel or two (2) or more contiguous parcels owned by one (1) landowner or owned jointly by two (2) or more landowners as cotenants, which comprises forty (40) acres or more and which together with the buildings or improvements situated thereon has an assessed valuation in excess of forty thousand dollars (\$40,000.00) as of the current assessment for property tax purposes, may be annexed without the written consent of the landowner or landowners, unless the tract of land is situated entirely within the boundaries of the annexing city or town (15-1-412)*



Zoning Assignment Review Criteria

The review criterion for a zoning assignment:

"1. The proposed zoning assignment is the most analogous City zone to the current zone when taking into consideration allowed uses. Zoning for standard county zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis." (UDC 2.2.8.d.1)

If the assigned zone is not the desired zone, please submit for a separate zoning map amendment. Check the box to acknowledge this requirement.*

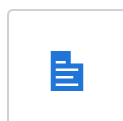


Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

✓ Trey Rinne
Jul 8, 2026

Attachments

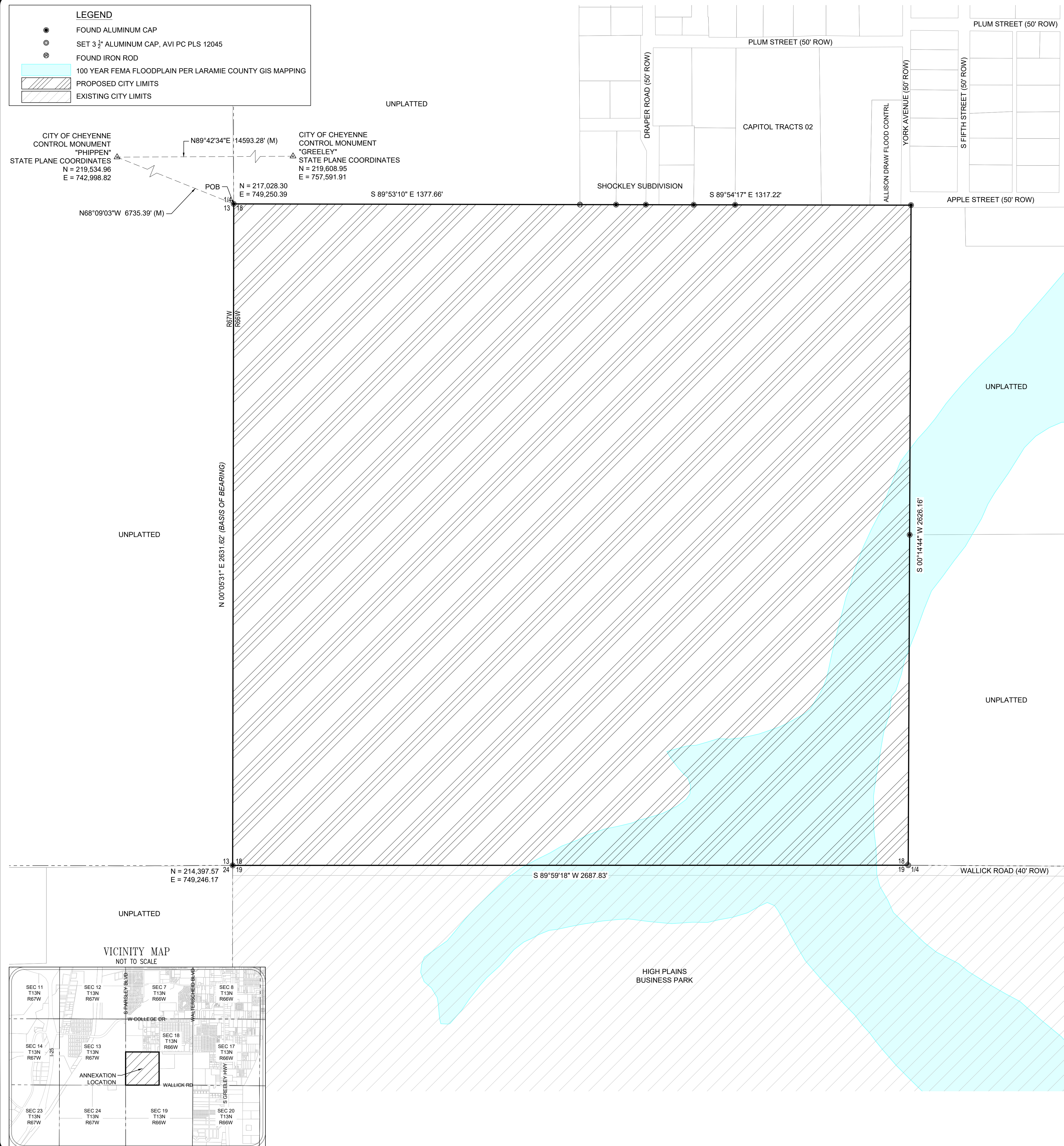


Letter of Authorization

Orchard Hills_Letter of Authorization.pdf
Uploaded by Trey Rinne on Jul 8, 2026 at 2:37 PM

REQUIRED

	Annexation Petition Orchard Hills_Annexation Petition.pdf Uploaded by Trey Rinne on Jul 8, 2026 at 2:37 PM	REQUIRED
	Annexation Map 5081 ANNEXATION.pdf Uploaded by Trey Rinne on Jul 8, 2026 at 2:37 PM	REQUIRED
	Board of Public Utilities Clearance Form 20260701_Orchard Hills annexation-bopu-clearance.pdf Uploaded by Trey Rinne on Jul 8, 2026 at 2:37 PM	REQUIRED



FILING RECORD

DRAWING NO. _____ OF 1

Re: Letter of Support for the Orchard Hills Project and "LI" zoning.

To Whom It May Concern:

I, Joseph D. SARA, own the property 2275 West College Dr.

My property is directly adjacent to the Orchard Hills Property. I hereby support the Orchard Hills annexation and zoning for Light Industrial ("LI") use. I hereby oppose that the Orchard Hills property be zoned residential.

Being a direct adjacent landowner, the development of Orchard Hills property affects me and the future of my property more than anyone else.

As such, I support the annexation and LI zoning for the following reasons:

- I support a single "light industrial" use of the adjacent property over dense housing and support this area trending towards light industrial development.
- I support the light industrial use be on City of Cheyenne water and sewer utilities rather than on well and septic systems.
- I recognize that there are direct benefits that my property will receive as a result of the Orchard Hills property being annexed and developed with a light industrial use that would not be possible if the Orchard Hills property be zoned residential.

For the foregoing reasons, I support the annexation of the Orchard Hills property and that it be zoned LI ("light industrial").

LANDOWNER

Signed: 

Name: Joseph D. SARA